ORDINANCE NO. 441

ORDINANCE TO AMEND THE ZONING ORDINANCES OF THE CITY OF RECTOR, ARKANSAS, AND FOR OTHER PURPOSES

WHEREAS, under the authority of the Zoning Ordinances of the City of Rector, Arkansas, the following described land is zoned Agricultural, to-wit:

An irregular lot lying in the Southeast Quarter of the Northwest Quarter of the Northeast Quarter (SE 1/4 NW 1/4 NE 1/4) of Section 26, Township 19 North, Range 7 East of the Fifth Principal Meridian, also being a part of Laffler's Survey of the NW 1/4 of the NE 1/4 of said Section, Township, and Range as recorded in Plat Record 1, Page 232, Rector, Eastern District, Clay County, Arkansas, and being further described as follows: Beginning at a point 160.00 feet East of the Southwest corner of said SE 1/4 NW 1/4 NE 1/4; run thence North 140.43 feet; thence East 150.00 feet; thence South 140.43 feet; thence West 150.00 feet to the point of beginning; containing .48 acres more or less, and being subject to a 25 foot wide sewer easement across the South side, and also subject to all other easements or rights-of-way.

WHEREAS, the above described land is now owned by Roger Gore and Ann Gore, his wife, and rezoning of the said land to Commercial C-2 Zone will promote and benefit the economy of the city and provide for the most efficient use of the above described land; and

WHEREAS, the Planning Commission of the City of Rector, Arkansas, has recommended the adoption of this ordinance to the city council; and

WHEREAS, it appears to the City Council that all applicable laws of the State of Arkansas and of the city have been complied with in presenting this ordinance to the City Council;

NOW THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

SECTION 1: The Zoning Ordinances of the City of Rector, Arkansas, should be and they hereby are amended so that the land hereinafter described is zoned Commercial C-2, to-wit:

An irregular lot lying in the Southeast Quarter of the Northwest Quarter of the Northeast Quarter (SE 1/4 NW 1/4 NE 1/4) of Section 26, Township 19 North, Range 7 East of the Fifth Principal Meridian, also being a part of

Laffler's Survey of the NW 1/4 of the NE 1/4 of said Section, Township, and Range as recorded in Plat Record 1, Page 232, Rector, Eastern District, Clay County, Arkansas, and being further described as follows: Beginning at a point 160.00 feet East of the Southwest corner of said SE 1/4 NW 1/4 NE 1/4; run thence North 140.43 feet; thence East 150.00 feet; thence South 140.43 feet; thence West 150.00 feet to the point of beginning, containing .48 acres more or less, and being subject to a 25 foot wide sewer easement across the South side, and also subject to all other easements or rights-of-way.

SECTION 2: All ordinances and parts of ordinances in conflict herewith are hereby repealed.

SECTION 3: The City Clerk is hereby directed to amend the official zoning map of the City of Rector, Arkansas, insofar as it relates to the lands described above so that the zoning thereof shall be in accordance with the provisions of this ordinance.

SECTION 4: This ordinance being necessary for the health, safety and welfare of the citizens of Rector and necessary for effective meeting, there being a significant scheduling problem for members of the City Council within the City of Rector, an emergency is declared to exist and this ordinance shall take effect and being in force and after its passage.

PASSED AND APPROVED this 3RD day of February, 1997.

By: Ronald E. Kemp
Mayor Ronald E. Kemp

Attest:

Kenneth R. Burns
Recorder/Treasurer Kenneth R. Burns